

K.Ratnamma vs L.Santhamma 6 Others on 24 March, 2020

Author: R. Raghunandan Rao

Bench: R. Raghunandan Rao

THE HON'BLE SRI JUSTICE R. RAGHUNANDAN RAO

A.S No.2327 of 1998

JUDGMENT :

The present appeal has been filed by the plaintiff against the judgment and decree in O.S.No.14 of 1987 dated 26.08.1995, on the file of the Court of the Agent to Government, Kakinada, East Godavari District.

2. It is the case of the plaintiff that the father of the plaintiff late Sri Lotha Subba Reddy had three children from his first wife Smt. Akkamma, viz., the plaintiff, D.4 and the mother of D.5. Upon the death of Smt. Akkamma, Sri Lotha Subba Reddy married D.1, who had four children, viz., two sons, viz., 2nd and 3rd defendants and two daughters, viz., 6th and 7th defendants. It may be noted that D.6 and D.7 were not arrayed as defendants initially, but were brought on record subsequently by way of an implead petition.

3. The plaintiff claims that her father late Subba Reddy passed away intestate, after having acquired various properties mentioned in the schedules to the suit. About four months after the demise of late Subba Reddy, the plaintiff issued a registered lawyer notice, dated 16.06.1987 for partition of the properties of late Subba Reddy on the ground that the said properties were self acquired properties of late Subba Reddy, who has passed away intestate. The plaintiff proposed partition of the property by treating the children of Smt. Akkamma, the first wife of late Subba Reddy as one branch entitled to half share and the 1st defendant and her children as one branch entitled to the other half share of the property of late Subba Reddy.

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4. As the defendants refused the said partition by way of a reply letter dated 16.07.1987, the plaintiff had approached the Agent to the Government by way of O.S.No.14 of 1987 for partition of the property set out in the Schedule-A to C in the plaint.

5. Defendant No.3 filed a written statement and the other defendants filed Memo adopting the same. In the written statement the pleas taken were that the property was ancestral property of late Subba Reddy as the same was acquired by the father of late Subba Reddy and as such the plaintiff being daughter, would not be entitled to any share in the joint family property except to the extent of claiming her share in the share falling to her father late Subba Reddy, on the basis of a notional

partition of the joint family property. The defendants claim that as there are three male members in the family, viz., late Subba Reddy, D.2 and D.3. A notional partition between the three members would have to be considered whereby the plaintiff would only be entitled to 1/8th share of the 1/3 share that would fall to the account of late Subba Reddy in the joint family property, in as much as, he had left behind seven children and his widow (D.1)

6. The defendants also took the plea that out of the properties described in the schedule, the plaintiff would at best have a right in Schedule-A agricultural lands and she would not be entitled to any share in Schedule-B property, which was the house in which defendants 1 to 3 were residing and also on account of the fact that the mother of the plaintiff late Smt. Akkamma was given a separate house. Subsequently, Para-6(A) was added by way of amendment to the written statement. The defendants, in the amended paragraph, took the plea that Items-1 and 2 of Schedule-A amounting to about Ac.4.50 cents was given to D.1 as 3 RRR,J stridhana property and as such they would have to be excluded from the schedule.

7. No issues appear to have been framed by the Agent to the Government in the matter and trial was conducted. In the course of the trial, the plaintiff examined PWs.1 to 4 and marked Ex.A.1, which was the registered notice dated 16.06.1987 issued by the defendants asking for partition. The defendants examined three witnesses and marked Ex.B.1- which was the reply to the notice marked as Ex.A.1.

8. The Agent to the Government recorded the pleadings and the depositions of various witnesses. However, the Agent did not give any finding on the question whether the property was self acquired property of late Subba Reddy as claimed by the plaintiff or it was ancestral property as claimed by the defendants. The Agent simply assumed that the property was ancestral property and as such she was not entitled to any share of the coparcenary property, as she was a married woman aged about 35 years, who had separated herself from the coparcenary before the death of her father, and dismissed the suit.

9. Aggrieved by the said judgment and decree, the plaintiff had filed the present appeal.

10. The matter was called on various dates and heard. However, there was no appearance on behalf of the respondents by the learned counsel appearing for the respondents, when the matter came up for hearing on 31.01.2020, 05.02.2020, 11.02.2020, 18.02.2020 and 24.02.2020. In view of the absence of learned counsel for the respondents, the submissions made by the learned counsel for the appellant are being considered in the disposal of this appeal.

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11. As no issues had earlier been framed by the Agent to the Government, the following issues would arise for consideration:-

1. Whether the suit schedule properties are properties, which were acquired by late Subba Reddy or they were ancestral properties?

2. Whether Items-1 and 2 of Schedule-A properties are to be treated as the Stridhana properties of the 1st defendant and should be excluded from the schedule?

3. On the basis of the finding in Issue No.1, what would be the share falling to the account of the plaintiff?

4. Whether the plaintiff would have a share in Schedule-B properties?

5. Whether the plaintiff has demonstrated that Schedule-C ornaments are also amenable to partition?

12. The learned counsel for the appellant submitted that the properties, which are subject matter of the suit, were acquired by the father and mother of the plaintiff by their own exertion and she would be entitled to 1/6th share of the properties being 1/3rd share of the 1/2 share that would fall to the share of the children of the first wife of late Subba Reddy. In any event, even if the property is assumed to be joint family property the amendment to Section 6 of the Hindu Succession Act in the year 2005, would enure to the benefit of the plaintiff and she would be entitled to 1/8th share of the properties, which were in the name of late Subba Reddy. For this purpose, learned counsel for the appellant relied upon the judgments of the Hon'ble Supreme court reported in Commissioner of Wealth Tax, Kanpur, etc. Etc., v. Chander Sen etc.,¹; Ganduri Koteswaramma & Anr. V. Chakiri Yanadi & Anr.,²; AIR 1986 SC 1753 5 RRR, J Uttam v. Saubhag Singh & ors.,³ and Danamma @ Suman Surpur v. Amar⁴.

Issue No.1:

13. The plaintiff claims that her father and mother being the first wife of her father had started life without any assets and had acquired Schedule-A property by way of allotment by the Government through a patta, as they had developed podu land. The plaintiff also claims that on the strength of these lands, Schedule-B house and Schedule-C ornaments were also acquired.

14. The defendants dispute this contention and claim that all the aforesaid properties were inherited by late Subba Reddy from his father Sri Venkat Reddy.

15. As the contention of the plaintiff was disputed and denied by the defendants the burden of proof showing that the properties were acquired by her father and mother would fall on the plaintiff. In discharge of this burden of proof, the plaintiff examined herself as PW.1 and PWs.2 to 4. It is the evidence of PWs.1 to 4 that the properties were acquired by late Subba Reddy by dint of his hard work and by way of obtaining loan from the Government. However, no documentation of any nature has been filed in support of their claim. If the version of the witnesses that the land was obtained from the Government, is to be accepted there would definitely be documents and proceedings under which the said land was allotted to the father and mother of the plaintiff. In the absence of any such documentation and in view of the denial of such

acquisition by the AIR 2012 SC 169 AIR 2016 SC 1169 (2018) 3 SCC 343

6 RRR,J defendants, it would have to be taken that the plaintiff has not been able to discharge the burden of proof of such acquisition by her father in his lifetime. In the said circumstances, it would have to be taken that the property, which is the subject matter of the suit, would have to be treated as ancestral joint family property of late Subba Reddy. Accordingly this issue is answered against the plaintiff.

Issue No.2:

16. The genesis of the litigation is the notice issued by the plaintiff on 16.06.1987, which is marked as Ex.A.1. In the said notice, the plaintiff claimed that nine items of Schedule-A property aggregating to Ac.36.35 cents would have to be partitioned. In the reply notice issued by the defendants, dated 16.07.1987 marked as Ex.B.1 the defendants took the stand that Schedule-A property consisting of Ac.36.35 cents was ancestral property and as such the plaintiff could only claim 1/24th share of Schedule-A property.

17. The defendants in the written, statement filed in the suit, also took the same plea. The claim that Items-1 and 2 of Schedule-A property amounting to about Ac.4.50 cents was stridhana property of D.1 was never taken. The plea that Items-1 and 2 are the stridhana properties of D.1 was only taken by way of amendment to the written statement much later. Even if the said pleadings were to be taken into account, the claim is that the said lands were granted to the 1st defendant by the Tahsildar by way of a patta from the Government at the time of her marriage. However, the 1st defendant does not explain as to why and how the Government had allotted the lands in her name by way of patta. Apart from this, the 1st defendant did not produce any document or material to

7 RRR,J show that the said land was allotted in her name by way of patta from the Government.

18. The subsequent amendment seeking to carve out that Ac.4.50 cents of land out of Schedule-A properties, appears to be an afterthought and cannot be accepted. As such Items-1 and 2 of Schedule-A properties would have to be treated as part of the property which is liable to be partitioned between the parties to the suit. The issue is answered in favour of the plaintiff.

Issue No.3:

19. The defendants have admitted in the reply notice marked as Ex.B.1, the written statement as well as the written arguments that the plaintiff is entitled to 1/24th share in Schedule-A property on the ground of principle of notional partition set out under un-amended Section 6 of the Hindu Succession Act, would have to be applied resulting in joint family property being split into three parts falling to the shares of late Subba Reddy and his two sons. Thereupon, the share of late Subba Reddy would have to be distributed among eight legal heirs being the seven children and widow of

late Subba Reddy. This would effectively mean that the plaintiff would get 1/24th share in the joint family properties of the family.

20. Learned counsel for the appellant, however, submits that in view of the judgments of the Hon'ble Supreme Court cited by him, all the daughters of late Subba Reddy would have to be treated as the members of the coparcenary and as such each one of them would be entitled to an equal share with that of the sons. In such a situation, she would be entitled to 1/7th share of the family property.

21. The Hon'ble Supreme Court in the case of Ganduri Koteswaramma v. Chakiri Yanadi (2 supra) held that the amendment Act 8 RRR,J No.39 of 2005 giving equal rights to the daughters would be applicable even to the cases where there is preliminary decree passed before the said amendment. Subsequently, the Hon'ble Supreme Court in the case of Prakash v. Phulavati⁵, after reviewing the law, in paragraph-23 of the said judgment, had held that only living daughters of living coparceners as on 09.09.2005 would be eligible to get the benefit of the amendment Act. Subsequently, the Hon'ble Supreme Court in the case of Danamma v. Amar (4 supra), after considering the earlier judgment of Prakash v. Phulavati (5 supra) had held that sons and daughters become coparceners by birth and are entitled to demand partition and on that basis granted full share to a daughter whose father had passed away even before 2005. Thereafter, the Hon'ble Supreme Court in the case of Mangamal @ Thulasi and Anr. vs T.B.Raju And Ors.,⁶ after considering both the above judgments followed the judgment of Prakash v. Phulavati to the effect that living daughters of living coparceners as on 09.09.2005 would get the benefit of the amendment Act.

22. All these judgments were considered by the Hon'ble Supreme Court in the case of Vineeta Sharma v. Rakesh Sharma⁷ and the case was referred to a Full Bench on the ground that there was a conflict between the said judgments.

20. As the Hon'ble Supreme Court in the case of Mangamal @ Thulasi and Anr. vs T.B.Raju And Ors., (6 supra) after considering the judgment in Prakash v. Phulavati and Danamma v. Amar had held that only living daughters of living coparceners as on 09.09.2005 would be entitled to be treated as coparceners. The said principle would have to be (2016) 2 SCC 36 (2018) 15 SCC 662 (2019) 6 SCC 162 9 RRR,J applied in the present case and as such it would have to be held that the plaintiff cannot make a claim as coparcener and her claim would have to be restricted to that of a legal heir to the 1/3rd share of her father under the principle of notional partition as set out in the un-amended Section 6 of the Hindu Succession Act.

23. The claim of the plaintiff that the property of her father has to be divided into two shares for the children of each of the two wives cannot be accepted, as all the children and widow of late Sri L. Subba Reddy would be Class-I heirs and would be entitled to take equally.

24. Therefore, the plaintiff would be entitled to 1/24th share of Schedule-A property.

Issue No.4:

25. The claim of the defendants in the reply notice and the written statement was that the plaintiff cannot have any claim over the 'B' schedule property, as it was the house in which the defendants were residing. It is not clear as to which provision of law would preclude the claim of the plaintiff against Schedule-B property only on the ground that the defendants 1 to 3 were residing in the said house. The defendants have also not adduced any evidence to show that a separate house has already been given to the mother of the plaintiff.

25. In the circumstances, it would have to be held that the plaintiff would get a share in Schedule-B property also and the said share would have to be 1/24th share in the said property. Issue No.5:

26. The claim of the plaintiff on the ornaments set out in Schedule-C is sought to be supported by the oral evidence of the witnesses produced by the plaintiff. However, the witnesses for the 10 RRR,J defendants have also been equally vocal in stating that the said ornaments were not available with the defendants and as such they could not be called upon to produce the said ornaments for the purpose of partition.

27. As the question is a matter of the word of one witness against the other it would have to be held that the plaintiff has not been able to discharge the burden of proof that such ornaments had been acquired and are in the possession of the defendants, this issue is held against the plaintiff.

28. In view of the above, It is to be held that the plaintiff is entitled to 1/24th share in both Schedule A and B properties.

29. Accordingly, the appeal is allowed and the suit is remanded to the Agent to the Government, Kakinada, East Godavari District, to carry out the final decree proceedings in terms of the findings in the present appeal. There shall be no order as to costs.

30. As a sequel, pending miscellaneous applications, if any, shall stand closed.

_____ R. RAGHUNANDAN RAO, J.

24th March, 2020 Js.

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